

Form 59.26A

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Respondent

Order to Appear and Disclose

[*Before Court Officer* name /*The Honourable Justice* name] :

A [direction to appear/direction to disclose/direction to appear and a direction to disclose] [was/were] [mailed to you/personally delivered to you] on , 20 ;

And you, [name] , failed to [appear/disclose/appear and disclose] as directed;

You must appear in court

You are ordered to come to the courthouse at , [Street/Avenue] , Nova Scotia and appear before [a judge/a court officer] at [a.m./p.m.] on , 20 .

You must bring documents

You are also ordered to bring with you three copies of each of the following:

- ☐ a parenting statement, [if you intend to make or dispute a claim for decision-making responsibility/custody, parenting time, or about parenting] ;
- ☐ a statement of contact time and interaction, [if you intend to make or dispute a claim for time or interaction with a child] ;

- a sworn statement of income, including all of the following attachments:
 - (a) copies of your last two consecutive income statements (for example, pay stubs, Employment Insurance stubs, social assistance stubs) or a letter from your employer or income provider stating your gross income so far this year;
 - (b) copies of all notices of assessment from Canada Revenue Agency for [20 , 20 , and 20 , the last three years] (you can obtain copies from the Canada Revenue Agency by calling 1-800-959-8281 or going online at <https://www.canada.ca/en/revenue-agency/services/e-services/e-services-individuals/account-individuals.html>);
 - (c) copies of all income tax returns, whether filed with the Canada Revenue Agency or not, completed with all schedules, attachments, and information slips (also available from the Canada Revenue Agency), for [20 , 20 , and 20 , the last three years] ;
 - (d) if you are self-employed, or a member of a partnership, or a trustee, administrator or beneficiary of a trust, or you control a corporation, you must comply with the directions in the statement of income;
 - (e) if you are unable to provide the applicable attachments listed from (a) to (d), you must provide a letter detailing why you cannot provide them.
- a sworn statement of special or extraordinary expenses, [*if you intend to make a claim for special or extraordinary expenses*] ;
- a sworn statement of undue hardship circumstances, [*if you intend to make a claim of undue hardship*] ;
- a sworn statement of expenses;
- a sworn statement of property;
- other [give specifics] .

Possible order against you if you fail

If you fail to obey this order, a judge or court officer may do any of the following without further notice to you:

- (1) order costs against you in an appropriate amount which is usually \$250.00;
- (2) make an order directing a person, such as your employer, to disclose financial or other information about you;

- (3) dismiss an application, motion, or claim, or any part of it, or stay a proceeding started by you;
- (4) make an interim or final order for decision-making responsibility/custody, time or interaction with a child, or about parenting;
- (5) make an interim or final order for child support;
- (6) make any other interim or final order, including an order for spousal support, division of property, division of pensions, or any other order sought;
- (7) start contempt proceedings against you for a contempt order.

Issued _____, 20____

[name of court officer]

COURT OFFICER

telephone:

fax:

[Add the following when order made by court officer]

[Note that when an order is made by a court officer, the Civil Procedure Rules permit you, or your counsel, to make a motion to the court officer to terminate or change the order, or appeal the order to a judge. The motion must be made or the appeal started, no more than ten days after a copy of the order is delivered to you.]